

Smt. Chhaya Gupta vs Dheeraj Gupta on 9 August, 2024

Author: Rajani Dubey

Bench: Rajani Dubey

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2024:CGHC:30269-DB

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR
FA(MAT) No. 245 of 2022

- Smt. Chhaya Gupta W/o Dhiraj Gupta, Aged About 30 Years, Caste - Rauniyar, R/o Village - Sarabkombo, Tahsil - Bagicha, District - Jashpur Chhattisgarh.

... Appellant

versus

- Dheeraj Gupta S/o Dilip Gupta, Aged About 30 Years, R/o Village - Baniyatoli, Jashpurnagar, District - Jashpur Chhattisgarh.

... Respondent

For Appellant : Mr. Harish Khuntiya, Advocate.
For Respondent : Mr. Rishikant Mahobia, Advocate.

(Division Bench)

Hon'ble Smt. Justice Rajani Dubey
Hon'ble Shri Justice Sanjay Kumar Jaiswal
Order on Board

(09.08.2024)

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Smt. Rajani Dubey, J.

1. The instant appeal has been filed by the appellant under Section 19(1) of the Family Court Act, 1984 being aggrieved by the impugned judgment and decree dated 15.11.2022 (Annexure A/1) passed by the Family Court, Jashpur, District-Jashpur (C.G.) in Civil Suit No. 29-A/2019 whereby the learned Family Court allowed the application under Section 13 (A) of the Hindu Marriage Act, 1955 filed by the respondent/husband for grant of decree of divorce and also directed the respondent husband to pay Rs.5 lakh and return the steel almirah, mixy, double bed, cooler, dressing table, LED TV and utensils.
2. The brief facts of the case are that the marriage between the parties was solemnized on 06.05.2017 as per the Hindu rites and customs. After marriage since March, 2019 they have been living separately. The respondent/husband filed a petition under Section 13(1) of the Hindu Marriage Act, 1955 before the learned Family Court, Raigarh (C.G.) for grant of decree of divorce from the appellant/wife on the ground of cruelty and prayed for dissolution of marriage dated 06.05.2017.
3. In the written statement filed by the appellant/wife, she denied the allegations of respondent/husband and stated that at the time of marriage, the parental family members of appellant/wife had given gifts, LED T.V., utensils, gold & silver ornaments, mixy, dressing table, bed, cooler and cash Rs.5,00,000/- deposited in the bank account of respondent/husband, therefore, she is entitled to get back the said Stridhan and cash amount given to the respondent/husband.
4. The learned Family Court minutely appreciated the oral and documentary evidence of both the parties and dissolved the marriage dated 06.05.2017 by allowing the divorce petition with a direction to respondent/husband that within a period of one month he has to return Rs.5,00,000/- and steel almirah, mixy, double bed, cooler, dressing table, LED T.V. and utensils which were given at the time of marriage to the respondent/husband. Hence this appeal filed by the appellant/wife.
5. Learned counsel for the appellant/wife submits that the impugned judgment dated 15.11.2022 passed by the learned trial Court is erroneous, illegal and contrary to the principles of law and therefore, it is liable to be set aside. The learned Family Court has failed to appreciate that at the time of marriage, parents of the appellant/wife had given gifts, LED T.V., utensils, gold & silver ornaments, mixy, dressing table, bed, cooler, and an amount of Rs. 5,00,000/- has been deposited in the bank account of the respondent/husband and the aforementioned Stridhan, which are amounting to Rs. 9,00,000/- had been given to the respondent/husband, therefore, the appellant/wife is entitled to get back the said Stridhan. He next submits that the learned trial Court did not appreciate the oral and documentary evidence properly and while allowing the divorce petition ought to have granted permanent alimony and maintenance in favour of appellant/wife as provided under Section 25 of the Hindu Marriage Act. The learned Family Court has not directed to return the whole Stridhan in favour of the appellant/wife. The findings recorded by the learned trial Court in respect of Stridhan is baseless, perverse, erroneous and contrary to the facts and circumstances of the case, therefore, impugned judgment and decree dated 15.11.2022 is liable to be set aside so far as it relates to return of Stridhan to the appellant/wife in the interest of justice. Thus, the instant appeal deserves to be allowed.

6. Learned counsel for the respondent/husband supported the impugned judgment and submits that the learned trial Court minutely appreciated the oral and documentary evidence and in para 19 finds that appellant/wife is held entitled for return of mixy, double bed, cooler, dressing table, LED T.V., utensils and steel almira, but for those articles for which receipt has not been filed by the appellant/wife, she is not entitled to get those items and also directed to give an amount of Rs.5 lakh in favour of the appellant/wife. This appeal is without any merits and liable to be dismissed.

7. Heard learned counsel for the parties and perused the material available on record.

8. It is clear from the record of the trial Court that the learned trial Court framed three issues. Issue No. 1 was found proved and the decree of divorce was granted by the learned trial Court. It is clear from the written statement of appellant/wife that she demanded her Stridhan. Smt. Chhaya Gupta (PW-1)/wife produced 8 documents (Ex-D1 to Ex-D8), which are related to police complaints, Doctor's prescription and details of bank account. She did not file any Bill of gifts or any list of gifts which was prepared at the time of marriage between the parties. The learned trial Court rightly found that as per admission of husband, wife is entitled for mixy, double bed, cooler, dressing table, LED T.V. & utensils and steel almirah as the wife did not file any Bill of other gift items and also not filed any report to prove the fact that any dowry was given to the husband at the time of marriage and the learned trial Court also granted Rs. 5 Lakh in favour of the appellant/wife as compensation.

9. Since the appellant only challenged the finding as related to Stridhan, so we are not considering the other facts and circumstances and it is clear from para 19 of the trial Court that learned trial Court minutely appreciated the oral and documentary evidence of both the parties and arrived at the conclusion that wife is entitled to get Rs.5 Lakh as compensation & steel almirah, mixy, double bed, cooler, dressing table, LED T.V., utensils as Stridhan.

10. In view of the above, the findings recorded by the learned trial Court are based on proper appreciation of oral and documentary evidence. We do not find any irregularity or illegality in the impugned judgment and decree. Therefore, this appeal being devoid of merits is liable to be and is hereby dismissed. A decree be drawn up accordingly.

Sd/-
(Rajani Dubey)
Judge

Sd/-
(Sanjay Kumar Jaiswal)
Judge

Sourabh P.